

22STCP00098 22STCP00098

County: los-angeles

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Department: 310

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Case Number: 22STCP00098 Hearing Date: August 27, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 27, 2026

Case Name: Albertoni v. LAUSD, et al.

Case No.: 22STCP00098

Matter: Motion to Compel Mental Exam

Moving Party: Defendant LAUSD

Responding Party: Plaintiff Diane Albertoni

Notice: OK

Ruling: The Motion is granted in part only after Defendant provides a specific

list of tests that it will administer.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On June 20, 2024, Plaintiff Diane Albertoni filed the operative Third Amended Complaint ("TAC"), which alleges what appears to be twelve causes of action for FEHA failure to provide reasonable accommodations and failure to engage in the interactive process against Defendant LAUSD.

Defendant now seeks to compel Plaintiff's mental exam.

This Court has the authority to compel a mental examination of a party. Code of Civil Procedure section 2032.310(a) provides that any party seeking to obtain discovery by a mental examination "shall obtain leave of court." A motion for a mental examination "shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Id. § 2032.310(b).) Any grant of a motion for a mental examination must be based on "good cause." (Id. § 2032.320(a).) Good cause requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.)

As stated in the Court's July 23, 2026, order, the Court finds that Plaintiff's mental condition is squarely "in controversy" within the meaning of Code of Civil Procedure section 2032.020(a).

Under Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, an order compelling a mental examination must name the specific diagnostic tests and procedures to ensure the court has weighed the potential intrusion against the defendant's need for discovery.

Previously, the Court found that: "The body of the motion fails to list any specific diagnostic tests or clinical instruments. While Defendant did attach a proposed unexecuted stipulation as Exhibit 3, which lists 27 distinct clinical tests (such as the MMPI, CVLT, and WAIS-IV), attaching a proposed stipulation as an exhibit does not satisfy the requirement that the moving party explicitly demand and justify those tests within its primary moving papers."

Now, Defendant has listed the 27 tests within its Motion, but has failed to explain which of the 27 will be used and why. Despite prior possible comments from the Court, this does not comply with Carpenter. Defendant is to come forward to the Motion hearing and set forth a list of approximately 5 tests that it plans to administer.

Plaintiff requests that copies of all raw test data, test questions, answers, and audio/video recordings be provided directly to Plaintiff's counsel under Randy's Trucking, Inc. v. Superior Court (2023) 91 Cal.App.5th 818.

Disclosure of proprietary, copyright-protected psychological test instruments and standardized raw data directly to non-clinicians violates test security standards established by the American Psychological Association (APA) and the American Academy of Clinical Neuropsychology (AACN). Accordingly, Defendant's examiner is ordered to transmit all raw test data, audio/video recordings (if any), and test protocols exclusively to a licensed psychologist or qualified mental health expert designated by Plaintiff upon written demand.

After the Court determines the tests that will be administered, Plaintiff Diane Albertoni shall attend a mental examination conducted by Dylan Harwood, Ph.D., on September 4, 2026, or other mutually agreeable date. The examination shall not exceed 8 hours of testing and interview time, excluding a 30-minute lunch break and necessary personal breaks. The exam shall be non-invasive and contain no physical examination components.

The Motion is granted in part as set forth herein.

Moving party to give notice.